Gmail

Nick Stoop <nick.stoop@gmail.com>

Fwd: Meeting [W-EU.FID140714]

11 messages

Nicola Johnson <nicola.johnson21@gmail.com> 23 April 2018 at 11:22
To: Nick Stoop <nick.stoop@gmail.com>

I wrote to James this morning asking for an explanation.

---------- Forwarded message ----------
From: **Copson, James** <James.Copson@withersworldwide.com>
Date: Mon, Apr 23, 2018 at 11:00 AM
Subject: Meeting [W-EU.FID140714]
To: Nicola Johnson <nicola.johnson21@gmail.com>
Cc: "Handel, Richard" <Richard.Handel@withersworldwide.com>

Dear Nicola

Thank you for your email.

As you might expect the firm's Credit Committee has had your situation on its radar for a long time. It tasked me a little while ago with obtaining a report from Johnny Fuller on the marketing for sale of Warwick House as the property had been on the market for sale since the early Autumn of 2017. This is the report that you have seen. Following my receipt of that report I sent it off to the Credit Committee. After that the Committee asked Peter Wood in his capacity as Global Head of the firm's Dispute Resolution Division to have a meeting with you to see if we could formulate with you a way to achieve a sale of Warwick House within a reasonable period of time. Peter in turn has asked Andrew Chesser, who is the partner in charge of property litigation, to assist him. The reasons for his involvement are twofold. The first is that Warwick House is subject to charging orders as a result of costs orders you obtained against Ziad and Warwick Estates. The second is that Barclays has appointed receivers to recover sums owing under the mortgage (albeit, as you know, that they have not taken further action). Peter felt he needed Andrew's involvement because these are areas of his expertise and he wanted to get the legal position right in connection with his discussions with you.

As you know, I am very happy to join you at the meeting, especially since you have been working with me throughout and this is probably the easiest way to effect the introduction.

I hope this provides you with the explanation you are looking for. Do please give me a call if you have any queries.

We are looking at fixing a meeting for next week. It might be best if we speak to fix the time as I need to make sure our diaries converge to make this possible.

I hope you enjoyed the sunshine too.

Best wishes

James

James Copson
Partner
Family
t +44 20 7597 6044
withersworldwide.com | my profile

Secretary: Maria Gill t +44 (0)20 7597 6405

Withers LLP
16 Old Bailey, London EC4M 7EG

Withers LLP - 16 Old Bailey, London EC4M 7EG T: +44 20 7597 6000 F: +44 20 7597 6543

Withersworldwide
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Nick Stoop <nick.stoop@gmail.com> 23 April 2018 at 15:25
To: Nicola Johnson <nicola.johnson21@gmail.com>

That looks very much like an ambush. I didn't realise they were transferring you to Dispute Resolution. Sounds like transfer to GRG. It always starts with an invitation from the trusted person to speak with one of their colleagues. Ask Ted.

How else can you satisfy Peter Wood and Andrew Chesser's demand for a swift sale without drastically dropping the price? A swift sale might also scupper your prospects re Barclays. Not a good combination.

It would be unwise to speak to them (or James) without independent legal advice (n.b. certainly before you speak with them, preferably at the meeting, too).

Have you spoken with Heather? She no longer returns my calls or emails, which is weird.

[Quoted text hidden]

Nick Stoop <nick.stoop@gmail.com> 23 April 2018 at 16:55
To: joe.edwards@crsblaw.com

[Quoted text hidden]

Nick Stoop <nick.stoop@gmail.com> 23 April 2018 at 17:10
To: Nicola Johnson <nicola.johnson21@gmail.com>

Baby,

I've just spoken with Charles Russell. They can come with you to the meeting.

It sounds like it could be quite serious, given the seniority of the people involved and their roles in the firm.

Things to watch out for:

- Withers may request/require you to agree to sign a Power of Attorney handing over the sale of the house to them; or
- Alternatively, they may force you into bankruptcy, which would mean that a Trustee in bankruptcy would take control of your assets and would be free to sell the house cheaply.

It may or may not happen at the meeting, but if it doesn't then the meeting could be their preparation for one of those steps, or for something else

Joe is currently drafting a brief note, which I will forward on to you.

x

N

[Quoted text hidden]

Joe Edwards <joe.edwards@crsblaw.com> 23 April 2018 at 17:13
To: Nick Stoop <nick.stoop@gmail.com>

Hi Nick

Thanks for sending this across.

At first glance, I suspect that Withers is now looking to increase the pressure on Nicola for its bills to be paid. The fact the credit control committee, the head of disputes and the head of property litigation are involved suggests a change of tact by Withers.

I wouldn't recommend Nicola attends the meeting alone without legal support. You can't know what Withers intend – potentially they may ask Nicola to sign a power of attorney given them custody of the sale. Alternatively, they may look to threaten other avenues, for instance possible bankruptcy.

We are, of course, more than happy to attend the meeting with Nicola. Just let me know if you/Nicola need anything further from us.

Kind regards

Joe Edwards | Associate

for and on behalf of Charles Russell Speechlys LLP

T: +44 (0)1483 252 619

F: +44 (0)1483 252557
charlesrussellspeechlys.com

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Nick Stoop <nick.stoop@gmail.com> 23 April 2018 at 17:15
To: Nicola Johnson <nicky.johnson@hotmail.com>

Dear Nicola,

Please see Joe's email, below. Let's chat when you have a moment.

x

N
[Quoted text hidden]

Nicola Johnson <nicky.johnson@hotmail.com> 24 April 2018 at 11:33
To: Nick Stoop <nick.stoop@gmail.com>

Simon seems to think that Withers are worried about their fees in light of the huge depreciation in value of WH. Market predictions for the next 2 years are gloomy. The value may well go down further and there may not be enough to cover their fees. He doesn't think however that they will force a sale but they'll want to get me into an arrangement to ensure that they are paid in full. Hopefully nothing as sinister as bankruptcy. I can only know what they plan if I go to the meeting. Going in with a lawyer to see my lawyers seems excessive at this point. I can't afford one anyway. I will have to go but will not agree to anything there and then.
If you're still up for it I would like to go ahead with the Barclays claim. I have written to Davina to see if she will look at your contract. I know she's usually very busy so I'm not sure when she'll get back to me. I hope this week.

N

From: Nick Stoop <nick.stoop@gmail.com>
Sent: 23 April 2018 17:15:56
To: Nicola Johnson
Subject: Re: Meeting [W-EU.FID140714]

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Nick Stoop <nick.stoop@gmail.com> 24 April 2018 at 12:15
To: Nicola Johnson <nicky.johnson@hotmail.com>

Please don't speak with Withers until you have spoken with Davina. I intend to instruct Charles Russell as part of the Barclays claim. While the negotiations with Withers are not, strictly speaking, part of that, I am sure that I can get them to advise (and attend) at no cost to you. But it is important to have legal advice before speaking with Withers. Please remember that Peter Levaggi is Charles Russell's equivalent of Andrew Chesser and that he has extensive experience not only of property litigation but also insolvency and bankruptcy matters.

It seems weird that you are prepared to go in to the lions' den at Withers (at risk of personal bankruptcy!) at the drop of a hat and without any lawyer yet at the same time require weeks to obtain legal advice about the Barclays contract (which anyway has a two-week cooling off period). I think that contract reflects what we agreed in clear terms (50/50 on the upside, 100% of the downside for my account). If you have any questions about the contract, please put those to me in the first instance. You can then have Davina (or whomever) review my answers. It's only a short document and should be easy for any lawyer to review.

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Nicola Johnson <nicky.johnson@hotmail.com> 24 April 2018 at 12:48
To: Nick Stoop <nick.stoop@gmail.com>

How can CR or any other lawyer advise me before I have spoken to Withers ? Nobody can know what their plan is before I speak to them.

From: Nick Stoop <nick.stoop@gmail.com>
Sent: 24 April 2018 12:15:35
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Nick Stoop <nick.stoop@gmail.com> 24 April 2018 at 12:57
To: Nicola Johnson <nicky.johnson@hotmail.com>

CRS has a pretty good idea of how the discussion may go. They have encountered similar issues at their firm.

I agree that Withers is concerned about its fees (and not unreasonably). I also agree that a fair agreement should be put in place to give them comfort on those. But I am certain that it would be harmful to your interests if you were forced to commit to an accelerated sale of the house. That would suit Withers, but not you.

I repeat, I don't think it is a good idea to speak with Withers without first having had the benefit of legal advice. That way, you will be ready for what they have to propose. I don't want to see you exposed (without advice) to the likes of Peter Wood and Andrew Chesser, even if James is there. His ultimate loyalty is to them, not to you.
[Quoted text hidden]

Nicola Johnson <nicola.johnson21@gmail.com> 18 May 2018 at 10:23
To: Nick Stoop <nick.stoop@gmail.com>

This was the only substantial email from James which you've already seen.
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